

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----XIndex No.:
LANETTE HOWARD, A/K/A LARRY HOWARD

Plaintiff,

SUMMONS

-against-

Plaintiff designates

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER

Bronx County as the place
of trial.

CRYSTAL WASHINGTON, POLICE OFFICER JOHN

DOE, "SCOTT," MADE IN PR LATIN CUISINE &The basis of venue is

SPORTS BAR CORP., d/b/a MADE IN PUERTO Plaintiff residence

RICO BAR & LOUNGE IN PUERTO RICO SOBRO,

26 BRUCKNER LLC, CANDIDO LOZADA, JOHN Plaintiff residence

DOE # 1, AND JOHN DOE #2 340 Alexander Ave. Apt
14B

Bronx, NY 10454

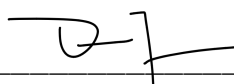
Defendants.

-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 1, 2023


DENNIS FELICIANO, ESQ.
PRADO & TUY, LLP
Attorneys for Plaintiff
LANETTE HOWARD A/K/A
LARRY HOWARD
305 Broadway, 7th Floor
New York, NY 10007
(212) 668-8888

TO:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10007

C/O CORPORATION COUNSEL
100 CHURCH ST
NY NY 10007

POLICE OFFICER CRYSTAL WASHINGTON (SHIELD 20523)
One Police Plaza
New York, NY 10007

NYPD OFFICER JOHN DOE "SCOTT"
One Police Plaza
New York, NY 10007

MADE IN PR LATIN CUISINE & SPORTS BAR CORP., d/b/a MADE IN PUERTO
RICO BAR & LOUNGE IN PUERTO RICO SOBRO
70 Alexander Ave a/k/a 26 Bruckner Boulevard
Ground Floor Retail Store and Portion of Basement
Bronx, NY 10454

Corporate Address:
MADE IN PR LATIN CUISINE & SPORTS BAR CORP., d/b/a MADE IN PUERTO
RICO BAR & LOUNGE IN PUERTO RICO SOBRO
C/O ATHENA HERNANDEZ
3363 EAST TREMONT AVE
BRONX, NY 10461

26 BRUCKNER LLC
c/o Bradford N. Sweet Management LLC
1536 Third Ave
New York, NY 10028

JOHN DOE
26 Bruckner Boulevard
Bronx, NY 10454

JOHN DOE #2
26 Bruckner Boulevard
Bronx, NY 10454

CANDIDO LOZADA
26 Bruckner Boulevard
Bronx, NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
LANETTE HOWARD, A/K/A LARRY HOWARD

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
CRYSTAL WASHINGTON, POLICE OFFICER JOHN DOE,
"SCOTT," MADE IN PR LATIN
CUISINE & SPORTS BAR CORP., d/b/a
MADE IN PUERTO RICO BAR & LOUNGE IN
PUERTO RICO SOBRO, 26 BRUCKNER LLC,
CANDIDO LOZADA, JOHN DOE # 1, AND
JOHN DOE #2

Defendants

-----X

Plaintiff, LANETTE HOWARD A/K/A LARRY HOWARD, by his
attorneys, Prado & Tuy, complaining of the Defendants, respectfully
alleges, upon information and belief:

1. That at all times herein mentioned, the plaintiff,
LANETTE HOWARD A/K/A LARRY HOWARD (Hereinafter referred to as LARRY
HOWARD), is and has been a resident of Bronx County, State of New
York.

2. That this action falls within one or more of the
exemptions set forth in CPLR §1602.

3. That the cause of action alleged herein arose in the
County of Bronx, and the State of New York.

4. That at all times hereinafter mentioned, the defendants
THE CITY OF NEW YORK and the NEW YORK POLICE DEPARTMENT
employed individuals acting as their agents POLICE OFFICER
CRYSTAL WASHINGTON, POLICE OFFICER JOHN DOE, "SCOTT," .

5. That at all times herein mentioned, the Defendant CITY OF
NEW YORK, was and still is a municipal corporation, and/or a

municipal entity, organized and existing under and by virtue of the Laws of the State of New York.

6. Upon information and belief, at all times herein mentioned, defendant CITY OF NEW YORK, was and still is a municipality organized and existing under and by virtue of the Laws of the State of New York.

7. That at all times herein mentioned, the Defendant Officer Crystal Washington was an employee of the New York Police Department of the Defendant, CITY OF NEW YORK. That at all times herein mentioned, the Defendant Police Officer John Doe "Scott", was an employee of the NEW YORK POLICE DEPARTMENT of the Defendant, CITY OF NEW YORK.

8. Prior to the initiation of this lawsuit a timely Notice of Claim was duly served upon and filed with the CITY OF NEW YORK and an Examination pursuant to Municipal Law 50H was held 12/14/22.

9. That at all times hereinafter mentioned, the defendants, MADE IN PR LATIN CUISINE & SPORTS BAR CORP., d/b/a MADE IN PUERTO RICO BAR & LOUNGE IN PUERTO RICO SOBRO (Hereinafter referred to as MADE IN PUERTO RICO) and 26 BRUCKNER LLC, employed individuals acting as their agents.

10. That at all times herein mentioned, the defendants, MADE IN PUERTO RICO, was and still is a domestic corporation duly organized and existing under and by virtues of the laws of the State of New York.

11. That at all times herein mentioned, the Defendant, MADE IN PUERTO RICO, was a corporation licensed to do and/or transact business within the State of New York.

12. That at all times herein mentioned, the Defendant, MADE IN PUERTO RICO, was and still is a domestic general and /or limited partnership duly organized and existing under and by virtue of the laws of the State of New York.

13. That at all times herein mentioned, the Defendant MADE IN PUERTO RICO, was and still is a partnership duly authorized to do business in the state of New York.

14. That at all times herein mentioned, the Defendant " JOHN DOE #1" , was an employee of MADE IN PUERTO RICO,

15. That at all times herein mentioned, the Defendant " JOHN DOE #2" , was an employee of MADE IN PUERTO RICO.

16. That at all times herein mentioned, the Defendant CANDIDO LOZADA, was an employee of MADE IN PUERTO RICO.

17. That at all times hereinafter mentioned, the defendant 26 BRUCKNER, LLC, employed individuals acting as their agents.

18. That at all times herein mentioned, the defendant 26 BRUCKNER, LLC, was and still is a domestic corporation duly organized and existing under and by virtues of the laws of the State of New York.

19. That at all times herein mentioned, the Defendant, 26 BRUCKNER LLC, was a corporation licensed to do and/or transact business within the State of New York.

20. That at all times herein mentioned, the Defendant, 26 BRUCKNER LLC, was and still is a domestic general and /or limited partnership duly organized and existing under and by virtue of the laws of the State of New York.

21. That at all times herein mentioned, the Defendant 26

BRUCKNER, LLC, was and still is a limited liability corporation duly authorized to do business in the state of New York.

22. Upon information and belief, that at all times hereinafter mentioned, the Defendant MADE IN PUERTO RICO's principal place of business is the building known by the street address 70 Alexander Avenue, a/k/a 26 Bruckner Blvd. Bronx, NY 10454. Specifically, the business is on the ground floor retail store and portion of basement.

23. Upon information and belief that at all time hereinafter mentioned, the Defendant 26 BRUCKNER BLVD, LLC's principal place of business is 1536 Third Avenue, New York, NY 10028.

24. At all times hereinafter mentioned, the defendant 26 BRUCKNER BLVD, LLC, upon information and belief, was the owner of the premises commonly known by the street address 70 Alexander Avenue, a/k/a 26 Bruckner Blvd. Bronx, NY 10454.

25. At all times hereinafter mentioned, and upon information and belief, the defendant 26 BRUCKNER BLVD, LLC, was the operator, of the premises 70 Alexander Avenue, a/k/a 26 Bruckner Blvd., Bronx, NY 10454.

26. That at all relevant times, defendant 26 BRUCKNER BLVD. LLC, was the lessor of said premises.

27. That at all relevant times, defendant MADE IN PUERTO RICO, was the lessee of said premises.

28. That at all relevant times, Plaintiff LARRY HOWARD was a invitee of said premises.

29. That at all relevant times, Plaintiff LARRY HOWARD was a customer of said premises.

30. On May 6, 2022, Plaintiff was lawfully in premises of MADE IN PUERTO RICO at 26 Bruckner Blvd. Bronx, NY. The Building is owned and operated by BRUCKNER 26 LLC.

31. On May 6, 2022, Plaintiff was assaulted, and battered at MADE IN PUERTO RICO by Defendant employees, CANDIDO LOZADA, JOHN DOE, " JOHN DOE #2", by hitting, punching, grabbing, kicking, throwing, and holding down Plaintiff..

32. Defendants CANDIDO LOZADA, " JOHN DOE #2" and " JOHN DOE" ,assaulted, battered, imprisoned, intentionally inflicted emotional distress upon the injured Plaintiff.

33. Defendants THE CITY OF NEW YORK, THE NEW YORK POLICE DEPARTMENT, POLICE OFFICER CRYSTAL WASHINGTON, POLICE OFFICER JOHN DOE "SCOTT" and CANDIDO LOZADA directly and or through agents, falsely accused Plaintiff, and arrested Plaintiff

34. On May 6, 2022, or or about 12:25AM, Plaintiff was arrested, at 26 Bruckner Blvd, Bronx, NY 10454, and was charged with multiple criminal charges. Plaintiff was also charged at

1:50AM at the 40th Precinct of the New York Police Department.

35.All matters against the Plaintiff were dismissed on 11/14/22.

CAUSE OF ACTION FOR FALSE ARREST

36. On the above date in the Bronx, New York, and at other locations known by defendants, defendants through their agents, servants, and employees, intentionally and wrongfully arrested Plaintiff LANETTE HOWARD A/K/A LARRY HOWARD, and did so without probable or reasonable cause, and did so without her consent, and Plaintiff was aware of her false arrest which was not otherwise privileged, causing her to suffer personal injuries, conscious pain and suffering, deprivation of freedom and loss of enjoyment of life, shock ,and fright and emotional upset that would naturally arise from such an incident.

37.As a result of the foregoing, Plaintiff sustained damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter and this Court does have jurisdiction of this matter.

CAUSE OF ACTION - WRONGFUL IMPRISONMENT

38. Plaintiff repeats and realleges each and every previous allegation with the same force and effect as if hereinafter set

forth at length.

39. At the above place and time and at other locations known to the defendants, including but not limited to the 40th precinct located at 257 Alexander Ave, Bronx, NY 10454 , defendants wrongfully detained and imprisoned Plaintiff without her consent and against her will and without reasonable and probable cause kept her in their custody, placed her in the wrong section of the jail cell, placed her in the male section, she was aware of said wrongful detention and confinement, and caused her to suffer personal injuries, conscious pain and suffering, and loss of enjoyment of life and loss of freedom, shock, and fright, and emotional upset that would naturally arise from such an incident.

40. As a result of the foregoing, Plaintiff sustained damages in an amount which exceed the jurisdictional limits of all lower courts whcih would otherwise have jurisdiction of this matter and this Court does have jurisdiction of this matter.

CAUSE OF ACTION - MALICIOUS PROSECUTION

41. Plaintiff repeats and realleges each and every previous allegation with ths same force and effect as if hereinafter set forth at length.

42. At the time that defendants initiated their prosecution of and against Plaintiff, defendants did not have probable or

reasonable cause to believe that Plaintiff was guilty of charges made against her, and that in initiating the prosecution , defendants acted maliciously and with reckless disregard of Plaintiff, the person accuse and said proceeding resulted in a disposition that was favorable to Plaintiff.

43. As a result of the foregoing, Plaintiff was caused to suffer personal injuries, conscious pain and suffering and loss of enjoyment of life and loss freedom shock and fright and emotional upset that would naturally arise from such incident, humiliation , mental anguish injury and inconvenience, expenses incurred and damages to reputation and punitive damages, based on defendants ill will, spite or wanton, reckless or wilful disregard of Plaintiff's rights that showed defendants conscious indifference and utter disregard.

44. As a result of the foregoing Plaintiff sustained damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter and this court does have jurisdiction of this matter.

**CAUSE OF ACTION AGAINST CITY OF NEW YORK, THE NEW YORK POLICE
DEPARTMENT AND OFFICERS CRYSTAL WASHINGTON AND POLICE OFFICER
JOHN DOE "SCOTT"
(Excessive Force)**

45. Plaintiff repeats and re-alleges by reference of paragraphs 1 to 44 as if fully set forth herein.

46. By their conduct, Police Officer Crystal Washington and

Police Officer John Doe "Scott" as described herein, and acting under color of state law in arresting Plaintiff, verbally abusing Plaintiff, and in negligently taking Plaintiff into custody without attending to necessary medical care, were undertaken without lawful justification, taken with deliberate indifference to Plaintiff's rights and were designed to and did, cause specific and serious bodily harm, pain and suffering, to the Plaintiff in violation of her Constitutional rights as guaranteed by the Fifth and the Fourteenth Amendments of the United States Constitution. Through these actions, Defendants are liable for violation of 42 U.S.C. Section 1983 which prohibits this deprivation under color of state law of rights secured under the United States Constitution.

47. As a consequence of the individual Defendants' actions, Plaintiff has suffered violations of his due process rights under the Fifth and Fourteenth Amendments. Plaintiff has fear and apprehension that she, will again be subject to similar unlawful acts by the Defendants.

48. As a direct and proximate result of the Defendants' unlawful actions Plaintiff has suffered and will continue to suffer, damages including, physical, mental and emotional injury and pain, mental anguish, humiliation and embarrassment.

**SECOND CAUSE OF ACTION AGAINST CITY OF NEW YORK, THE NEW YORK
POLICE DEPARTMENT AND OFFICERS CRYSTAL WASHINGTON AND POLICE
OFFICER JOHN DOE "SCOTT"
(Failure to Intervene, Denial of Medical Care, Denial of
Appropriate Detention)**

49. Plaintiff repeats and re-alleges paragraphs 1 to 44.

50. That the aforementioned actions of Police Officer Crystal

Washington and Police Officer John Doe "Scott" in failing and refusing to intervene to prevent the continued use of excessive force, denial of medical care, denial of appropriate detention, against Plaintiff constituted the permitting and allowing of a violation of Plaintiff's rights under the Fourth, Eight, and Fourteenth Amendments to the U.S. Constitution, and entitle Plaintiff to recover damages from these defendants pursuant to 42 U.S.C. Section 1983.

**CAUSE OF ACTION AGAINST THE CITY OF NEW YORK, THE NEW YORK POLICE
DEPARTMENT AND OFFICERS CRYSTAL WASHINGTON AND POLICE OFFICER
JOHN DOE "SCOTT"
(Constitutional Violations)**

51. Plaintiff repeats and re-alleges paragraphs 1 to 44.

52. By their conduct as described herein, and acting under color of state law, to deprive the plaintiff of her right to be free from excessive force in the course of an arrest as required by the Fourth and Fourteenth Amendments, the individual Defendants are liable for violation of 42 USC Section 1983 which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

53. As a direct and proximate result of Defendants' unlawful actions, Plaintiff has suffered and will continue to suffer damages including, physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.

**FOURTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK, THE NEW YORK
POLICE DEPARTMENT AND OFFICERS CRYSTAL WASHINGTON AND POLICE
OFFICER JOHN DOE "SCOTT" (Monell Claim)**

54. Plaintiff repeats and re-alleges paragraphs 1 to 44.

55. At all relevant times herein, Defendant CITY OF NEW YORK, acting through its NYPD, developed, implemented, enforced, encouraged and sanctioned de facto policies, practices, and/or customs exhibiting deliberate indifference to the Plaintiffs' constitutional rights which caused the violation of such rights.

56. Defendants' unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of her constitutional rights under the First, Fourth, Fifth, and Fourteenth Amendments of the to the Constitution.

57. The constitutional abuses and violations by Defendant CITY OF NEW YORK, through the actions of its Police Department and Police Officer Crystal Washington and Police Officer John Doe "Scott" were and are directly and proximately caused by policies, practices and/or customs developed, implemented, enforced, encouraged and sanctioned by Defendant City of New York, including the failure : (a) to adequately supervise and train its officers and agents, including the Defendants, thereby failing to adequately discourage further constitutional violations on the part of its police officers; (b) to properly and adequately monitor and discipline its officers, including Defendants; and (c) to adequately and properly investigate citizen complaints of police misconduct and instead , acts of misconduct were tolerated by City of New York.

58. Upon information and belief, Defendant City of New York, has acting, through its NYPD, developed, implemented, enforced, encouraged and sanctioned a de facto policies and practices,

and/or customs.

59. Defendants' unlawful actions were done willfully, knowingly and with the specific intent to deprive the Plaintiff of his constitutional rights under the First, Fourth, Fifth, and Fourteenth Amendments to the U.S. Constitution.

60. Defendants have acted with deliberate indifference to the constitutional rights of Plaintiff. As a direct and proximate result of the acts as stated herein by each of the Defendants, the Plaintiff's constitutional rights have been violated, which has caused her to suffer physical , mental, and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.

61. Plaintiff has no adequate remedy at law and will suffer serious and irreparable harm to their constitutional right unless Defendants are enjoined from continuing their unlawful policies, practices, and or customs which have directly and proximately caused such constitutional abuses.

62. That by virtue of the foregoing, Plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. Section 1983, pursuant to Monell v. Dep't of Social Servs. Of N.Y.C., 436 U.S. 658.

**CAUSE OF ACTION AGAINST THE CITY OF NEW YORK, THE NEW YORK POLICE
DEPARTMENT AND OFFICERS CRYSTAL WASHINGTON AND POLICE OFFICER
JOHN DOE "SCOTT"
(Negligent Hiring, training and retention)**

63. Plaintiff repeats and re-alleges paragraphs 1 to 44.

64. That the aforesaid incident and resulting damage to Plaintiff was due to the negligence of the City , its agents, servants, and or employees, in the hiring, training and retention of the involved New York Police Department Officers.

**CAUSE OF ACTION AGAINST THE CITY OF NEW YORK, THE NEW YORK POLICE
DEPARTMENT AND OFFICERS CRYSTAL WASHINGTON AND POLICE OFFICER JOHN
DOE "SCOTT" (withholding property)**

Plaintiff was arrested and her possessions were confiscated. Despite her release, and subsequent dismissal of charges, to date, Plaintiff has not received all her property, including but not limited to cash.

**CAUSE OF ACTION AS TO MADE IN PUERTO RICO
(Negligent Hiring, Training and Retention)**

65.Plaintiff repeats and re-alleges paragraphs 1 to 44 as set forth above.

66.Upon information and belief, at all times, hereinafter, mentioned, defendant MADE IN PUERTO RICO,, was negligent, reckless, and irresponsible in hiring Defendants, CANDIDO LOZADA " JOHN DOE #2" , " JOHN DOE" , who defendant MADE IN PUERTO RICO knew or should have known were ill equipped to serve as employees. Upon information and belief, prior to the acts complained of herein, Defendants CANDIDO LOZADA " JOHN DOE #2" , " JOHN DOE" had a propensity to commit crime.

67. Upon information and belief, CANDIDO LOZADA " JOHN DOE #2" , " JOHN DOE" committed acts evincing a propensity to commit crime.

68. Upon information and belief, Defendants MADE IN PUERTO RICO and 26 BRUCKNER LLC, knew that Defendants CANDIDO LOZADA "

JOHN DOE #2" , " JOHN DOE" had a propensity for committing criminal acts.

69. Upon information and belief, Defendants MADE IN PUERTO RICO and 26 BRUCKNER LLC, should have known that CANDIDO LOZADA " JOHN DOE #2" , " JOHN DOE" had a propensity for committing criminal acts.

70. That Defendant MADE IN PUERTO RICO hired their agents and employees who were operating and working for Defendant on or about May 5, 2023 at the above mentioned location.

71. That the above described was caused by the negligence, carelessness, and recklessness of the Defendant MADE IN PUERTO RICO herein, in among other things: negligently hiring their agents, servants, and or employees, who were not of a disposition, temperament, and training suitable to perform the duties which were assigned; in failing to properly train, educate and teach said agents, and or employees, the appropriate procedures and techniques in discharging their duties, in hiring Defendant's agents, and employees without making appropriate background checks of said individuals, without making proper use or evaluation of background checks of said agents, or employees; in negligently hiring; in failing to make, publish and enforce proper rules and regulations, appropriate to the facts and circumstances of the episode herein, Defendants employees and agents, acting in disregard of of any rules and regulations made.

72. That the policy of the Defendant MADE IN PUERTO RICO sanctioned encouraged, promoted and or was indifferent to the

utilization and hiring and or retention of unqualified agents and employees and others including but not limited to Defendants' agents and employees, and others who caused the injuries to Plaintiff.

73. That by reason of the foregoing, Defendant MADE IN PUERTO RICO, was grossly negligent in the hiring of their agents and employees, and others who caused the injuries to Plaintiff.

74. As a result of the negligence, carelessness, and recklessness of the defendants, Plaintiff was caused to sustain bodily injuries and to be otherwise rendered sick, sore, lame and disabled,;caused to undergo hospital and medical treatment; unable to pursue his usual and regular activities; caused to undergo great conscious pain and suffering; continues to undergo such and will permanently be affected by the injuries incurred as a result of the occurrence.

**CAUSE OF ACTION AGAINST MADE IN PUERTO RICO 26 BRUCKNER, CANDIDO LOZADA, AND " JOHN DOE #2" AND " JOHN DOE"
(Negligent Security)**

75. Plaintiff repeats and re-alleges paragraphs 1 to 74.

76. Defendants MADE IN PUERTO RICO, 26 BRUCKNER BLVD, LLC, CANDIDO LOZADA, " JOHN DOE #2" and " JOHN DOE #1" , were negligent.

77. Defendants CANDIDO LOZADA, " JOHN DOE #2" and " JOHN DOE #1" had a duty to use reasonable care and not harm or injure the Plaintiff.

78. At all times hereinafter mentioned Defendants MADE IN PUERTO RICO and 26 BRUCKNER LLC owed a duty to the public including

the Plaintiff, to exercise reasonable and ordinary care to keep and maintain its premises in a condition reasonably safe for the use of the public.

79. At all times material, Defendants MADE IN PUERTO RICO and 26 BRUCKNER LLC, had a duty to take such precautions as were reasonably necessary to protect its invitees and or tenants including the Plaintiff from criminal acts which were reasonably foreseeable.

80. Defendants MADE IN PUERTO RICO and 26 BRUCKNER LLC had a duty to control the conduct of persons present on their premises.

81. Defendants MADE IN PUERTO RICO and 26 BRUCKNER LLC were aware of the necessity of control of persons on the premises.

82. Defendants MADE IN PUERTO RICO and 26 BRUCKNER LLC knew or in the exercise of reasonable care should have known that criminal acts were reasonably likely to be perpetrated upon business invitees.

83. Defendants MADE IN PUERTO RICO and 26 BRUCKNER LLC knew or in the exercise of reasonable care should have known that they were required to take measures to provide for security on the premises to protect its invitees.

84. Defendants MADE IN PUERTO RICO and 26 BRUCKNER LLC were

negligent and breached their duty of reasonable care for the safety and protection of the Plaintiff.

85. Defendants MADE IN PUERTO RICO and 26 BRUCKNER LLC was negligent by failed to warn, protect, guard, and secure the safety of Plaintiff when Defendants MADE IN PUERTO RICO and 26 BRUCKNER LLC knew or should have known of the existence of crime and the danger to Plaintiff.

86. Defendants MADE IN PUERTO RICO and 26 BRUCKNER LLC were negligent by failing to implement adequate security policies, security measures, and security procedures necessary to protect Plaintiff.

87. As a result, Plaintiff sustained severe physical injuries, mental pain, and suffering, psychological injuries, sarring, disability, disfigurement, and the loss of enjoyment of life.

88. As a direct and proximate result of the above-described carelessness and negligence of the Defendants MADE IN PUERTO RICO and 26 BRUCKNER LLC , the Plaintiff has also incurred significant past and future medical expenses and the loss of past income and future earning capacity.

89. Defendants breached that duty by acting negligently, and not using reasonable care, and proximately caused Plaintiff's injuries described above.

90. Defendant " JOHN DOE #2" committed the above-described conduct within the scope of his employment with MADE IN PUERTO RICO. Therefore, and for other reasons, MADE IN PUERTO RICO is vicariously liable for his conduct.

91. Defendant " JOHN DOE #1 " committed the above-described conduct within the scope of his employment with MADE IN PUERTO RICO. Therefore, and for other reasons, MADE IN PUERTO RICO is vicariously liable for his conduct.

92. Defendant CANDIDO LOZADA committed the above-described conduct within the scope of his employment with MADE IN PUERTO RICO. Therefore, and for other reasons, MADE IN PUERTO RICO is vicariously liable for his conduct.

93. Defendant " JOHN DOE #2" , committed the above-described misconduct with the apparent authority of his employer, MADE IN PUERTO RICO, and thus MADE IN PUERTO RICO is liable for his conduct.

94. Defendant " JOHN DOE #1" , committed the above-described misconduct with the apparent authority of his employer, MADE IN PUERTO RICO, and thus MADE IN PUERTO RICO is liable for his conduct.

95. Defendant CANDIDO LOZADA , committed the above-described misconduct with the apparent authority of his employer, MADE IN PUERTO RICO, and thus MADE IN PUERTO RICO is liable for his conduct.

CAUSE OF ACTION AGAINST MADE IN PUERTO RICO, 26 BRUCKNER , CANDIDO LOZADA, AND " JOHN DOE #2" AND " JOHN DOE #1"
(Assault)

96. Plaintiff repeats and re-alleges paragraphs 1 to 95.

97. Defendants CANDIDO LOZADA, " JOHN DOE #2" and " JOHN DOE" assaulted Plaintiff,

98. Defendants CANDIDO LOZADA, " JOHN DOE #2" and " JOHN DOE" intentionally placed Plaintiff in apprehension of imminent harmful or offensive contact.

99. Defendants MADE IN PUERTO RICO, 26 BRUCKNER BLVD, LLC, its agents servants and or employees jointly and severally intentionally placed Plaintiff in apprehension of imminent harmful or offensive contact.

100. Defendant " JOHN DOE #2" committed the above-described conduct within the scope of his employment with MADE IN PUERTO RICO. Therefore, and for other reasons, MADE IN PUERTO RICO is vicariously liable for his conduct.

101. Defendant " JOHN DOE # 1" committed the above-described conduct within the scope of his employment with MADE IN PUERTO RICO. Therefore, and for other reasons, MADE IN PUERTO RICO is vicariously liable for his conduct.

102. Defendant CANDIDO LOZADA committed the above-described conduct within the scope of his employment with MADE IN PUERTO RICO. Therefore, and for other reasons, MADE IN PUERTO RICO is

vicariously liable for his conduct.

103. Defendant " JOHN DOE #2" , committed the above-described misconduct with the apparent authority of his employer, MADE IN PUERTO RICO, and thus MADE IN PUERTO RICO is liable for his conduct.

104. Defendant " JOHN DOE # 1", committed the above-described misconduct with the apparent authority of his employer, MADE IN PUERTO RICO, and thus MADE IN PUERTO RICO is liable for his conduct.

105. Defendant CANDIDO LOZADA, committed the above-described misconduct with the apparent authority of his employer, MADE IN PUERTO RICO, and thus MADE IN PUERTO RICO is liable for his conduct.

CAUSE OF ACTION AGAINST MADE IN PUERTO RICO, 26 BRUKNER, CANDIDO LOZADA AND " JOHN DOE #2" AND " JOHN DOE" (Battery)

106. Plaintiff repeats and re-alleges paragraphs 1 to 105.

107. Defendants CANDIDO LOZADA," JOHN DOE #2" and " JOHN DOE" battered the Plaintiff.

108. Defendants CANDIDO LOZADA," JOHN DOE #2" and " JOHN DOE" intentionally placed Plaintiff in apprehension of imminent harmful or offensive contact.

109. Defendants MADE IN PUERTO RICO, 26 BRUCKNER BLVD, LLC, its agents servants and or employees jointly and severally intentionally placed Plaintiff in apprehension of imminent harmful

or offensive contact.

110. Defendants CANDIDO LOZADA, " JOHN DOE #2" and " JOHN DOE" made intentional physical contact upon Plaintiff.

111. Defendants MADE IN PUERTO RICO, 26 BRUCKNER BLVD, LLC, its agents servants and or employees jointly and severally made intentional physical contact upon Plaintiff.

112. Defendant " JOHN DOE #2" committed the above-described conduct within the scope of his employment with MADE IN PUERTO RICO. Therefore, and for other reasons, MADE IN PUERTO RICO is vicariously liable for his conduct.

113. Defendant " JOHN DOE # 1" committed the above-described conduct within the scope of his employment with MADE IN PUERTO RICO. Therefore, and for other reasons, MADE IN PUERTO RICO is vicariously liable for his conduct.

114. Defendant CANDIDO LOZADA committed the above-described conduct within the scope of his employment with MADE IN PUERTO RICO. Therefore, and for other reasons, MADE IN PUERTO RICO is vicariously liable for his conduct.

115. Defendant " JOHN DOE #2" , committed the above-described misconduct with the apparent authority of his employer, MADE IN PUERTO RICO, and thus MADE IN PUERTO RICO is liable for his conduct.

116. Defendant " JOHN DOE # 1" , committed the above-described misconduct with the apparent authority of his employer, MADE IN PUERTO RICO, and thus MADE IN PUERTO RICO is liable for his

conduct.

117. Defendant CANDIDO LOZADA , committed the above-described misconduct with the apparent authority of his employer, MADE IN PUERTO RICO, and thus MADE IN PUERTO RICO is liable for his conduct.

CAUSE OF ACTION AGAINST MADE IN PUERTO RICO, 26 BRUCKNER, CANDIDO LOZADA, AND " JOHN DOE #2" AND " JOHN DOE" (Intentional infliction of Emotional Distress)

118. Plaintiff repeats and re-alleges paragraphs 1 to 81.

119. Defendants CANDIDO LOZADA, " JOHN DOE #2" and " JOHN DOE #1" intentionally inflicted emotional distress upon the Plaintiff.

120. Defendants CANDIDO LOZADA, " JOHN DOE #2" and " JOHN DOE conduct was intended to and did cause emotional distress to Plaintiff.

121. Defendants CANDIDO LOZADA, " JOHN DOE #2" and " JOHN DOE conduct was the direct and proximate cause of injury and damage to Plaintiff and violated statutory and common law rights.

122. Defendant " JOHN DOE #2" committed the above-described conduct within the scope of his employment with MADE IN PUERTO RICO. Therefore, and for other reasons, MADE IN PUERTO RICO is vicariously liable for his conduct.

123. Defendant " JOHN DOE #1" committed the above-described conduct within the scope of his employment with MADE IN PUERTO RICO. Therefore, and for other reasons, MADE IN PUERTO RICO is vicariously liable for his conduct.

124. Defendant CANDIDO LOZADA, committed the above-described conduct within the scope of his employment with MADE IN PUERTO RICO. Therefore, and for other reasons, MADE IN PUERTO RICO is vicariously liable for his conduct.

125. Defendant "JOHN DOE #2", committed the above-described misconduct with the apparent authority of his employer, MADE IN PUERTO RICO, and thus MADE IN PUERTO RICO is liable for his conduct.

126. Defendant "JOHN DOE #1", committed the above-described misconduct with the apparent authority of his employer, MADE IN PUERTO RICO, and thus MADE IN PUERTO RICO is liable for his conduct.

127. Defendant "CANDIDO LOZADA", committed the above-described misconduct with the apparent authority of his employer, MADE IN PUERTO RICO, and thus MADE IN PUERTO RICO is liable for his conduct.

That solely by reason of the foregoing, Plaintiff sustained damages in the sum which exceed the jurisdictional limits of the lower courts.

Dated: May 1, 2023
New York, New York

Yours, etc. 

DENNIS J. FELICIANO, ESQ.
PRADO & TUY, LLP
Attorneys for Plaintiff
LANETTE HOWARD A/K/A LARRY
HOWARD
305 Broadway, Seventh Floor
New York, New York 10007
(212) 668-8888

ATTORNEY'S VERIFICATION

DENNIS J. FELICIANO, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at PRADO & TUY, LLP, attorneys of record for Plaintiff, LANETTE HOWARD A/K/A LARRY HOWARD. I have read the annexed COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not by the Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the plaintiff maintain their offices.

DATED: New York, New York
May 3, 2023



DENNIS J. FELICIANO, ESQ.
PRADO & TUY, LLP
Attorneys for Plaintiff
LANETTE HOWARD A/K/A LARRY
HOWARD
305 Broadway, Seventh Floor
New York, New York 10007
(212) 668-8888